

The Water (Prevention And Control Of Pollution) Rules, 1975

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Union of India - Act

The Water (Prevention And Control Of Pollution) Rules, 1975

UNION OF INDIA

India

The Water (Prevention And Control Of Pollution) Rules, 1975

Rule THE-WATER-PREVENTION-AND-CONTROL-OF-POLLUTION-RULES-1975 of 1975

Published on 27 February 1975

Commenced on 27 February 1975

[This is the version of this document from 27 February 1975.]

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The Water (Prevention And Control Of Pollution) Rules, 1975

Published vide G.S.R. 58(E), dated 27.2.1975, published in the Gazette of India, Extraordinary, Part II, Section 3(i), dated 27.2.1975.

1069.

In exercise of the powers conferred by section 63 of the Water (Prevention and Control of Pollution) Act, 1974 (6 of 1974

), the Central Government after consultation with the Central Board for the Prevention and Control of Water Pollution, hereby makes the following rules, namely:-

Chapter I

Preliminary

1.

Short title and commencement .-(1) These rules may be called The Water (Prevention and Control of Pollution) Rules, 1975.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Water (Prevention and Control of Pollution) Act, 1974;

(b)

"Chairman" means the Chairman of the Central Board;

(c)

"Central Board Laboratory" means a laboratory established or recognised as such under sub-section (3) of section 16;

(d)

"Central Water Laboratory" means a laboratory established or specified as such under sub-section (1) of section 51;

(e)

"form" means a form set out in Schedule I;

(f)

"member" means a member of the Central Board and includes the Chairman thereof;

(g)

"Member-Secretary" means the Member-Secretary of the Central Board;

(h)

"section" means a section of the Act;

(i)

"Schedule" means a Schedule appended to the rules;

(j)

"year" means the financial year commencing on the first day of April.

Chapter II

Terms And Conditions Of Service Of The Members Of The Central Board And Of Committees Of Central Board

3.

Salaries, allowances and other conditions of service of the Chairman .-(1) The Chairman shall be paid a fixed monthly salary of Rs. 3,000.

(2)

[(a) In addition to the salary specified in sub-rule (1), the Chairman shall be entitled to city compensatory allowance and house rent allowance as admissible to a Central Government servant in terms of Ministry of Finance (Department of Expenditure), O.M. No. 2(3)-E. II(B)/64, dated the 27th November, 1965:

Provided that where the Chairman is allotted an accommodation by the Central Government, he shall not be entitled to house rent allowance and shall be required to pay ten per cent of the emoluments drawn by him as house rent or licence fee;

(b)

in respect of journeys undertaken by the Chairman in connection with his duties as Chairman, he shall be entitled to travelling allowance and daily allowance at the rates permissible in the case of a Government officer of equivalent rank under the Supplementary Rules of the Central Government;

(c)

the Central Board shall provide to the Chairman, medical facilities as admissible to an officer of the Central Government drawing salary of Rs. 3,000 per mensem.]

(3)

Notwithstanding anything contained in sub-rules (1) and (2), where a Government servant is appointed as Chairman, the terms and conditions of his service shall be such as may be specified by the Central Government from time to time.

4.

Salaries, allowances and other conditions of service of Member-Secretary .-(1) The Member-Secretary shall be paid a monthly pay in the scale of Rs. 2,250-125-2,500.

(2)

[(a) In addition to the salary specified in sub-rule (1) the Member-Secretary shall be entitled to city compensatory allowance and house rent allowance as admissible to a Central Government servant in terms of Ministry of Finance (Department of Expenditure), O.M. No. 2(3)-E. II(B)/64, dated the 27th November, 1965:

Provided that where the Member-Secretary is allotted an accommodation by the Central Government he shall not be entitled to house rent allowance and shall be required to pay ten per cent of the emoluments drawn by him as house rent or licence fee;

(b)

in respect of journeys undertaken by the Member-Secretary in connection with his duties as Member-Secretary he shall be entitled to travelling allowance and daily allowance at the rates permissible in the case of a Government Officer of equivalent rank under the Supplementary Rules of the Central Government;

(c)

the Central Board shall provide to the Member-Secretary, medical facilities as admissible to an officer of the Central Government drawing salary in the scale of Rs. 2,250-125-2,500 per mensem.]

(3)

Notwithstanding anything contained in sub-rules (1) and (2) where a Government servant is appointed as Member-Secretary, the terms and conditions of his service shall be such as may be specified by the Central Government from time to time.

5.

Terms and conditions of service of members of the Central Board .-(1) Non-official members of the Central Board resident in Delhi shall be paid an allowance of [rupees seventy-five] per day for each day of the actual meetings of the Central Board.

(2)

Non-official members of the Central Board, not resident in Delhi shall be paid an allowance of rupees seventy-five per day (inclusive of daily allowance) for each day of the actual meetings of the Central Board and also travelling allowance at such rate as is admissible to a Grade I officer of the Central Government:

Provided that in case of a Member of Parliament who is also a member of the Central Board, the said daily and travelling allowance will be admissible when the Parliament is not in session and on production of a certificate by the member that he has not drawn any such allowance for the same journey and halts from any other Government source.

6.

Fees and allowances to be paid to such members of a committee of the Central Board as are not members of the Board under sub-section (3) of section 9.-A member of a committee of the Central Board shall be paid in respect of meetings of the committee travelling and daily allowances, if he is a non-official, at the rates specified in rule 5, as if he were a member of the Central Board and, if he is a Government servant, at the rates, admissible under the relevant rules of the respective Government under whom he is serving.

Chapter III

Powers And Duties Of The Chairman And Member-Secretary And Appointments Of Officers And Employees

7.

Powers and duties of the Chairman .-(1) The Chairman shall have overall control over the day-to-day activities of the Central Board.

(2)

(i)

The Chairman may undertake tours within India for carrying out the functions of the Central Board:

Provided that he shall keep the Central Government (Secretary to the Ministry of Works and Housing) and the Central Board, informed of his tours.

(ii)

The Chairman may, with the prior approval of the Central Government, visit any country outside India.

(3)

[] In the matter of acceptance to tenders, the Chairman shall have full powers subject to the concurrence of the Central Board:

Provided that no such concurrence is required for the acceptance of tenders up to an amount of rupees one thousand in

each case.

(4)

□

[Sub-Rule (3) omitted and sub-Rules (4) and (5) renumbered as (3) and (4) by G.S.R. 36(E), dated 29.1.1981 (w.e.f. 29.1.1981).]

Subject to overall sanctioned budget provision, the Chairman shall have full powers to administratively approve and sanction all estimates.

8.

Creation and abolition of posts .-The Central Board may create such posts as it considers necessary for the efficient performance of its functions and may abolish any post, so created:

Provided that for the creation of, and appointments to, posts, the maximum of the scale of which is above Rs. 1,600 per month, the Central Board shall obtain prior sanction of the Central Government.

9.

Powers and duties of the Member-Secretary .-The Member-Secretary shall be subordinate to the Chairman and shall, subject to the control of the Chairman, exercise the following powers, namely:-

(1)

The Member-Secretary shall be in charge of all the confidential papers of the Board and shall be responsible for preserving them.

(2)

The Member-Secretary shall produce such papers whenever so directed by the Chairman or by the Central Board.

(3)

The Member-Secretary shall make available to any member of the Central Board, for his perusal, any record of the Board.

(4)

The Member-Secretary shall be entitled to call for the services of any officer or employee of the Central Board, and files, papers and documents for study from any department of the Board, as also to carry out inspection of any department at any time including checking of accounts, vouchers, bills and other records and stores pertaining to the Board or regional offices thereunder.

(5)

The Member-Secretary may withhold any payment:

Provided that [as soon as may be, and in any case not later than three months] after such withholding of payment the matter shall be placed before the Central Board for its approval.

(6)

The Member-Secretary shall make all arrangements for holding meetings of the Central Board and meetings of the Committees constituted by the Central Board.

(7)

All orders or instructions to be issued by the Central Board shall be over the signature of the Member-Secretary or of any other officer authorised in this behalf by the Chairman.

(8)

The Member-Secretary shall authorise, sanction or pass all payments against allotments made or estimates sanctioned.

(9)

The Member-Secretary shall write and maintain confidential reports of all Class I and Class II officers of the Central Board and shall get them countersigned by the Chairman.

(10)

The Member-Secretary shall countersign the confidential reports of all Class III employees of the Central Board.

(11)

(i)

The Member-Secretary shall sanction the annual increments of Class I and Class II officers of the Central Board:

Provided that the increments of Class I and Class II officers shall be withheld only with the approval of the Chairman.

(ii)

The annual increments of other employees of the Central Board not referred to in clause (i) shall be sanctioned by

officers authorised in this behalf by the Member-Secretary.

(12)

The Member-Secretary shall have full powers for according technical sanction of all estimates.

(13)

The Member-Secretary shall exercise such other powers and perform such other functions as may be delegated to him from time to time either by the Board or by the Chairman.

Chapter IV

Temporary Association Of Persons With Central Board

10.

Manner and purpose of association of persons with Central Board .-(1) The Central Board may invite any person, whose assistance or advice it considers useful to obtain in performing any of its functions, to participate in the deliberations of any of its meetings.

(2)

If the person associated with the Board under sub-rule (1) happens to be a non-official, resident in Delhi, he shall be entitled to get an allowance of rupees seventy-five per day for each day of actual meeting of the Central Board in which he is so associated.

(3)

If such person is non-resident in Delhi, he shall be entitled to get an allowance of rupees seventy-five per day (inclusive of daily allowance) for each day of actual meeting of the Central Board in which he is so associated and also to travelling allowance at such rates as is admissible to a Grade I officer of the Central Government.

(4)

Notwithstanding anything in sub-rules (2) and (3), if such person is a Government servant or an employee in a Government undertaking he shall be entitled to travelling and daily allowance only at the rates admissible under the relevant rules applicable to him.

Chapter V

Consulting Engineer

11.

Appointment of consulting engineer .-For the purpose of assisting the Central Board in performance of its functions, the Board may appoint a consulting engineer to the Board for a specified period not exceeding four months:

Provided that the Board may, with the prior approval of the Central Government extend the period of the appointment from time to time:

Provided further that if at the time of the initial appointment the Central Board had reason to believe that the services of the consulting engineer would be required for a period of more than four months, the Central Board shall not make the appointment without the prior approval of the Central Government.

12.

Power to terminate appointment .-Notwithstanding the appointment of a consulting engineer for a specified period under rule 11, the Central Board shall have the right to terminate the services of the consulting engineer before the expiry of the specified period, if, in the opinion of the Board, the consulting engineer is not discharging his duties properly or to the satisfaction of the Board or such a course of action is necessary in the public interest:

[Provided that the services of a consulting engineer shall not be terminated under this rule by the Central Board except after giving him a reasonable opportunity of showing cause against the proposed action.]

13.

Emoluments of the consulting engineer .-The Central Board may pay the consulting engineer suitable emoluments or fees depending on the nature of work, and the qualifications and experience of the consulting engineer:

Provided that the Central Board shall not appoint any person as consulting engineer without the prior approval of the Central Government if the emoluments or fees payable to him exceeds rupees two thousand per month.

14.

Tours by consulting engineer .-The consulting engineer may undertake tours within the country for the performance of the duties entrusted to him by the Central Board and in respect of such tours he shall be entitled to travelling and daily allowances as admissible to a Grade I officer of the Central Government. He shall, however, get the prior approval of the Member-Secretary to his tour programme.

15.

Consulting engineer not to disclose information .-The consulting engineer shall not disclose any information either given by the Central Board or obtained, during the performance of the duties assigned to him either from the Central Board or otherwise, to any person other than the Central Board without the written permission of the Board.

16.

Duties and functions of the consulting engineer .-The consulting engineer shall discharge such duties and perform such functions as are assigned to him, by the Central Board and it will be his duty to advise the Board on all technical matters referred to him by the Board.

Chapter VI

Budget Of The Central Board

17.

Form of the budget estimates .-(1) The budget in respect of the year next ensuing showing the estimated receipts and expenditure of the Central Board shall be prepared in Forms I, II, III and IV and submitted to the Central Government.

(2)

The estimated receipts and expenditure shall be accompanied by the revised budget estimates for the current year.

(3)

The budget shall as far as may be, based on the account heads specified in Schedule II.

18.

Submission of budget estimates to the Central Board .-(1) The budget estimates as compiled in accordance with rule 17 shall be placed by the Member-Secretary before the Central Board by the 5th October each year for approval.

(2)

After approval of the budget estimates by the Central Board, four copies of the final budget proposals incorporating therein such modifications as have been decided upon by the Central Board shall be submitted to the Central Government by the 15th October each year.

19.

Estimates of establishment expenditure and fixed recurring charges .-(1) The estimates of expenditure on fixed establishment as well as fixed monthly recurring charges on account of rent, allowances, etc., shall provide for the gross sanctioned pay without deductions of any kind.

(2)

The estimates referred to in sub-rule (1) shall be added a suitable provision for leave salary based on past experience with due regard to the intention of the members of the staff in regard to leave as far as the same can be ascertained.

(3)

If experience indicates that the total estimate for fixed charges referred to in sub-rules (1) and (2) is not likely to be fully utilised, a suitable lumpsum deduction shall be made from the total amount estimated.

20.

Re-appropriations and emergent expenditure .-No expenditure which is not covered by a provision in the sanctioned budget estimates, or which is likely to be in excess over the amount provided under any head, shall be incurred by the Central Board without provision being made by re-appropriation from some other head under which savings are firmly established and available.

21.

Power to incur expenditure .-The Central Board shall incur expenditure out of the funds received by it in accordance with the instructions laid down under the General Financial Rules of the Central Government and other instructions issued by the Government from time to time.

22.

Operation of fund of the Central Board .-The fund of the Central Board shall be operated by the Member-Secretary of the Central Board or in his absence by any officer of the Central Board who may, subject to the approval of the Central Government, be so empowered by the Central Board.

23.

Saving .-Nothing in this Chapter shall apply to a budget already finalised before the commencement of these rules.

Chapter VII

Annual Report Of The Central Board

24.

Form of annual report .-The annual report in respect of the year last ended giving a true and full account of the activities of the Central Board during the previous financial year shall contain the particulars specified in the Schedule III [* * *].

Chapter VIII

Account Of The Central Board

25.

Form of annual statement of accounts of the Central Board .-The annual statement of accounts of the Central Board shall be in Forms V to IX.

Chapter IX

Report Of Central Board Analyst

26.

Form of report of Central Board Analyst .-When a sample of any water, sewage or trade effluent has been sent for analysis to a laboratory established or recognised by the Central Board, the Central Board analyst appointed under sub-section (3) of section 53 shall analyse the sample and submit to the Central Board a report in triplicate in Form X of the result of such analysis.

Chapter X

Central Water Laboratory

27.

Functions of the Central Water Laboratory .-The Central Water Laboratory shall cause to be analysed any samples of water, sewage or trade effluent received by it from any officer authorised by the Central Board for the purpose, and findings [shall be recorded in a report in triplicate] in Form XI.

28.

[Fees for report

.-The fees payable in respect of each report of the Central Water Laboratory on any analysis or test mentioned in column (2) of Schedule IV shall be at the rates specified in the corresponding entry in column (3) thereof.]

Chapter XI

Powers And Functions Of The Central Board In Relation To Union Territories

29.

Central Board to act as State Board for Union territories .-The Central Board shall act as the State Board for Union territories under sub-section (4) of section 4.

30.

Power to take samples .-The Central Board or any officer, empowered by it in this behalf shall have power to take for the purpose of analysis samples of water from any stream or well or samples of sewage or trade effluent which is passing from any plant or vessel or from or over any place into any such stream or well in any Union territory.

31.

Form of notice .-A notice under clause (a) of sub-section (3) of section 21 shall, in the case of a Union territory, be in Form XII.

32.

[Application for consent

.-An application for obtaining the consent of the Central Board for establishing or taking any steps to establish any industry, operation or process or any treatment and disposal system or any extension or addition thereto, which is likely to discharge sewage or trade effluent into a stream or well or sewer or on land (such discharge being hereinafter in this rule referred to as discharge of sewage); or for bringing into use any new or altered outlet for the discharge of sewage or beginning to make any new discharge of sewage under section 25 or for continuing an existing discharge of sewage under section 26 shall be made to the Central Board in Form XIII.]

33.

Procedure for making inquiry into application for consent .-(1) On receipt of an application for consent under section 25 or section 26, the Central Board may depute any of its Officers, accompanied by as many assistants as may be necessary, to visit the premises of the applicant, to which such application relates, for the purpose of verifying the correctness or otherwise of the particulars furnished in the application or for obtaining such further particulars or information as such officer may consider necessary. Such officer may, for that purpose, inspect any place where water

or sewage or trade effluent is discharged by the applicant, or treatment plants, purification works or disposal systems of the applicant and may require the applicant to furnish to him any plans, specifications and other data relating to such treatment plants, purification works or disposal systems or any part thereof, that he considers necessary.

(2)

Such officer shall before visiting any premises of the applicant for the purpose of inspection under sub-rule (1) above, give notice to the applicant of his intention to do so in Form XIV. The applicant shall furnish to such officer all facilities that such officer may legitimately require for the purpose.

(3)

An officer of the Central Board may, before or after carrying out an inspection under sub-rule (1) above, require the applicant to furnish to him, orally or in writing such additional information or clarification, or to produce before him such documents, as he may consider necessary for the purpose of investigation of the application and may, for that purpose, summon the applicant or his authorised agent to the office of the Central Board.

34.

[Directions

-(1) Any direction issued under section 33-A shall be in writing.

(2)

The direction shall specify the nature of action to be taken and the time within which it shall be complied with by the person, officer or the authority to whom such direction is given.

(3)

The person, officer or authority to whom any direction is sought to be issued shall be served with a copy of the proposed direction and shall be given an opportunity of not less than fifteen days from the date of service of a notice to file with an officer designated in this behalf the objections, if any, to the issue of the proposed direction.

(4)

Where the proposed direction is for the stoppage or regulation of electricity or water or any other services affecting the carrying on of any industry, operation or process and is sought to be issued to an officer or an authority, a copy of the proposed direction shall also be endorsed to the occupier of the industry, operation or process, as the case may be, and objections, if any, filed by the occupier with an officer designated in this behalf shall be dealt with in accordance with the procedures under sub-rules (3) and (5) of this rule:

Provided that no opportunity of being heard shall be given to the occupier, if he had already been heard earlier and the proposed direction referred to in sub-rule (3) above for the stoppage or regulation of electricity or water or any other service was the resultant decision of the Central Board after such earlier hearing.

(5)

The Central Board shall within a period of 45 days from the date of receipt of the objections, if any, or from the date up to which an opportunity is given to the person, officer or authority to file objections whichever is earlier, after considering the objections, if any, received from the person, officer or authority sought to be directed and for reasons to be recorded in writing, confirm, modify or decide not to issue the proposed direction.

(6)

In a case where the Central Board is of the opinion that in view of the likelihood of a grave injury to the environment it is not expedient to provide an opportunity to file objections against the proposed direction, it may, for reasons to be recorded in writing, issue directions without providing such an opportunity.

(7)

Every notice or direction required to be issued under this rule shall be deemed to be duly served,-

(a)

Where the person to be served is a company, if the document is addressed in the name of the company at its registered office or at its principal office or place of business and is either-

(i)

sent by registered post; or

(ii)

delivered at its registered office or at the principal office or place of business;

(b)

Where the person to be served is an officer serving Government, if the document is addressed to the person and a copy

thereof is endorsed to his Head of the Department and also to the Secretary to the Government, as the case may be, incharge of the Department in which for the time being the business relating to the Department in which the officer is employed is transacted and is either-

(i)

sent by registered post, or

(ii)

is given or tendered to him;

(c)

In any other case, if the document is addressed to the person to be served and-

(i)

is given or tendered to him, or

(ii)

if such person cannot be found, is affixed on some conspicuous part of his last known place of residence or business or is given or tendered to some adult member of his family or is affixed on some conspicuous part of the land or building, if any, to which it relates, or

(iii)

is sent by registered post to that person.

Explanation .-For the purposes of this sub-rule-

(a)

"company" means any body corporate and includes a firm or other association of individuals;

(b)

"a servant" is not a member of the family.]

35.

[Manner of giving notice

.-The manner of giving notice under clause (b) of sub-section (1) of section 49 shall be as follows, namely:-

(1)

The notice shall be in writing in Form XV;

(2)

If the alleged offence has taken place in a Union territory, the person giving notice may send notice to-

(i)

the Central Board; and

(ii)

the Ministry of Environment and Forests (represented by the Secretary to the Government of India); and

(iii)

the Administrator of the Union territory (represented by the Secretary/Head incharge of Environment).

(3)

The notice shall be sent by registered post acknowledgement due; and

(4)

The period of sixty days mentioned in clause (b) of sub-section (1) of section 49 of the Act, shall be reckoned from the date it is first received by one of the authorities mentioned in sub-rule (2).]

I

FORM I

(See rule 17)

[CENTRAL POLLUTION CONTROL BOARD]

[Substituted by Act 47 of 1987, Section 2, for " Central Board for the Prevention and Control of Water Pollution&" .]

Detailed budged estimates for the year 20.....

Administration

(Expenditure)

{I

I-

| Head of Account

| Actuals for the past three years

| Sanctioned estimate for the current year

| Actuals of last six months, i.e., year

| Actuals of six months for the current year

| Revised estimate for the current year

| Budget estimate for the next year

| Variations between columns 5 and 8

| Variations between columns 8 and 9

| Explanation for columns 10 and 11

| -

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FORM II

(See rule 17)

CENTRAL POLLUTION CONTROL BOARD

[Substituted by Act 47 of 1987, Section 2, for 'Central Board for the Prevention and Control of Water Pollution]

Establishment

Statement of details of provisions for pay of Officers/Establishment for the year 20.....

Name and designation

Reference to page of estimate form

The Water (Prevention And Control Of Pollution) Rules, 1975

Sanctioned Pay of the Post Mini./Maxi./Actual pay of the person concerned due on 1st April Next year

(a) (b)

(c)

Amount of provision for the year at the rate in column 3(c)

Increment falling due within the year

Total provision for the year, i.e., total of columns 4 & 5

Remarks

Date of Increment

Rate of Increment

Amount of increment for the year

(a)

(b)

(c)

1

2

3

4

5

6

7

FORM III

(See rule 17)

[CENTRAL POLLUTION CONTROL BOARD]

[Substituted by Act 47 of 1987, Section 2, for " Central Board for the Prevention and Control of Water Pollution&" .]

Nominal Rolls

Name and designation

Pay

Dearness allowance

City Compensatory allowance

House rent allowance

Overtime allowance

Children educational allowance

Leave travel concession

Other allowances

Total

1

2

3

4

5

6

7

8

9

10

Total

FORM IV

(see rule 17)

[CENTRAL POLLUTION CONTROL BOARD]

[Substituted by Act 47 of 1987, Section 2, for " Central Board for the Prevention and Control of Water Pollution&" .]

Abstract of Nominal Rolls

Actual sanctioned strength as on 1st March, 20

Particulars of Posts

Sanctioned Budget Grant 20

. 20

.

No. of posts included

Pay and allowances

No. of posts included

Pay and allowances

Explanation for the difference between sanctioned Budget Grant, Revised Estimated and Budget Estimates

No. of posts included

Pay and allowances

1

2

3

4

5

6

7

8

9

I Officers

(a) Posts filled

(b) Posts vacant

Total I-Officers

II Establishment

(a) Posts filled

(b) Posts vacant

Total II-Establishment

III Class IV

(a) Posts filled

(b) Posts vacant

Total III-Class IV

Grant Total-I, II and III

|||

FORM V

(See rule 25)

[CENTRAL POLLUTION CONTROL BOARD]

[Substituted by Act 47 of 1987, Section 2, for " Central Board for the Prevention and Control of Water Pollution&" .]

Receipts and payments for the year ended 20.....

Previous year

Receipts

Previous year

Payments

(1)

(2)

(3)

(4)

Opening Balance-

I. Grant received _____

(a) From Government _____
(b) From other agencies _____
1. Capital expenditure _____
(i) Works _____
(ii) Fixed assets _____
(iii) Other assets-
(a) Laboratory equipment
(b) Vehicles
(c) Furniture and fixtures
(d) Scientific instruments and office appliances
(e) Tools and plants
II Fees
2. Revenue Expenditure _____
III Fines and forfeitures
(A) Administrative
IV Interest on investments
(i) Pay of officers
V Miscellaneous receipts
(ii) Pay of establishment
VI Miscellaneous advances
(iii) Allowances and honoraria
VII Deposits
(iv) Leave salary and pension Contribution _____
(v) Contingent expenditure _____
Deduct Recoveries _____
Total
(B)(i) Board laboratory
(ii) Charges to be paid to the Central Water Laboratory
(C). Running and maintenance of vehicles
(D) Maintenance and repairs
(i) Buildings and land Drainage including rents, if any _____
(ii) Works
(iii) Furniture and fixtures
(iv) Scientific instruments and office appliances
(v) Tools and plants
(vi) Temporary works
(including maintenance and repairs)
(E) Fees to consultants and specialists _____
(F) Law charges _____
(G) Miscellaneous _____
(H) Fees for audit _____
3. Purchases _____
4. Miscellaneous _____
5. Advances _____
6. Deposits _____
Closing Balance _____
Total _____
Accounts Officer
Member-Secretary
Chairman
FORM VI

(See rule 25)

[CENTRAL POLLUTION CONTROL BOARD]

[Substituted by Act 47 of 1987, Section 2, for " Central Board for the Prevention and Control of Water Pollution&" .]

Annual Statement of Accounts

Income and expenditure account for the year ender 31st March, 20...

Previous year

Expenditure Details

Total of sub-head

Total of major hear

Previous year

Income Details

Total of sub-head

Total of major head

1

2

3

4

5

6

7

8

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

To

REVENUE EXPENDITURE

By

(A)Administrative:

(I)GRANTS RECEIVED

(i)Pay of officers

(a)From Government

(ii)Pay of establishment

(b)From other agencies

(iii)Allowance

& honoraria

Total:

(iv)Leave salary and pension contributions

(v)Board's contribution to the staff provident fund

Less:

(vi)Contingent expenditure deduct recoveries

Amount utilized for capital expenditure.

(B)Running expenses of laboratories:

Net grant available for Revenue expenditure

(i)Main laboratory

(II)Fees

(ii)Payments to be made to Central Water Laboratory

(III)Service rental charges

(C)Running and maintenance of vehicle
(IV)Fines and forfeitures
(D)Maintenance and repairs:
(V)Interest on investments
(i)Building and land drainage
(VI)Miscellaneous receipts
(ii)Works
(VII)Excess of expenditure over income
(iii)Furniture and fixtures
(iv)Scientific instruments and office appliances
Total:
(v)Tools and plant
(E)Temporary works
(including maintenance and repairs)
(F)Fees to consultants and specialists.
(G)Law charges
(H)Depreciation
(i)Buildings
(ii)Laboratory equipment
(iii)Vehicles
(iv)Furniture and fixtures
(v)Scientific instruments and office appliances
(vi)Tools and plants
(I)Miscellaneous:
(i)Write off of losses (as per details in the statement attached)
(ii)Other miscellaneous expenditure
(J)Fees for audit
(K)Excess of Income over expenditure
Total
Accounts Officer
Member-Secretary
Chairman
| | | | | | | |
FORM VII
(See rule 25)

[CENTRAL POLLUTION CONTROL BOARD]

[Substituted by Act 47 of 1987, Section 2, for " Central Board for the Prevention and Control of Water Pollution&" .]

Annual Statement of Accounts

Balance Sheet As on 31st March,20.....

Capital and Liabilities

Property and Assets

Previous year

Details

Total of sub-head

Total of major head

Previous year

Details

Total of sub-head

Total of major head

1

2

3
4
5
6
7
8

(A) Capital Fund

(i) Grants received from Govt. for
Capital expenditure.

(a) Amount utilised upto 31st March 19__.

(b) Unutilised balance on 31st March 19__

(ii) Grant from other agencies for
Capital expenditure

(a) Amount utilised upto 31st March 19__

(b) Unutilised balance on 31st March 19__

(iii) Value of land provided by Govt.
(per contra)

(B) Capital Receipts-

(C) (i) Deposits received for works from outside bodies-
Expenditure-

(iii) Other deposits-

(D) Amounts due-

(i) Purchases

(ii) Others

(E) Excess of income over expenditure ____

(i) upto 31st March 19__ . . .

(ii) Add for the year

(iii) Deduct-Excess of Expenditure
over income.

1. Works-

(As per Form VIII)

2. Fixed Assels

(As per Form IX)

(a) Value of land provided by Govt.
(at cost).

(b) Buildings-

Balance as per last

Balance sheet

Additions during the year

Total _____

Less: _____

Depreciation during the year

Total: _____

3. Other Assets

(As per Form IX)

(a) Laboratory Equipment as per last

Balance sheet--additions during the year

Total: _____

Less:

Depreciation during the year

Total: _____

(b) Vehicles as per last balance sheet.

Additions during the year.

Total: _____

Less :

Depreciation during the year

Total:

(c) Furniture and Fixtures.

As per last Balance Sheet.

Additions during the year.

Total: _____

Less:

Depreciation during the year

Total: _____

(c) Scientific Instruments and Office.

Appliances-

As per last Balance Sheet

Additions during the year

Total: _____

Tools and Plants-

As per last Balance Sheet

Additions during the year

Total: _____

Depreciation during the year.

Total: _____

4. Sundry Debtors-

(i) Amounts due from outside bodies for expenditure incurred-

Expenditure

Less amount received

(ii) Other Sundry Debtors

5. Advances-

(a) Miscellaneous Advances

(b) Other amount recoverable

Cash-

(a) Notice/Short Term Deposits

(b) Cash at Bank

(c) Cash in hand

(d) Cash in transit

Total

Total

Accounts Officer

Member-Secretary

Chairman

|||||||

FORM VIII

(See rule 25)

[CENTRAL POLLUTION CONTROL BOARD]

[Substituted by Act 47 of 1987, Section 2, for " Central Board for the Prevention and Control of Water Pollution&" .]

Annual Statement of Accounts

Expenditure on works as on 31st March, 20...

(Item 1-Assets of the Balance Sheet)

Sl. No.

Name Or work

Upto 31st March 19

During the year 19

Upto 31st March 19

Direct Expenditure

Overhead Charges

Total Expenditure

Direct Expenditure

Overhead Charges

Total Expenditure

Direct Expenditure

Overhead Charges

Total Expenditure

|||||||

TOTAL

Accounts Officer

Member-Secretary

Chairman

|||||||

FORM IX

(See rule 25)

[CENTRAL POLLUTION CONTROL BOARD]

[Substituted by Act 47 of 1987, Section 2, for " Central Board for the Prevention and Control of Water Pollution&" .]

Annual Statement of Accounts

Fixed Assets as on 31st March, 19__ (Item 2 Assets of the Balance Sheet)

Other Assets as on 31st March, 19__ (Item 3 Assets of the Balance Sheet)

Sl. No.

Particulars of Assets

Balance as on 31stMarch 19

Additions during the years

Total

Depreciation during the year

Sales of write off during the year

Balance as on 31st March 19

Cumulative Depreciation as on 31st March 19

|||||||

Accounts Officer

Member-Secretary

Chairman

MANU

FORM X

REPORT BY THE CENTRAL BOARD ANALYST

(See Rule 26)

Report No. _____

Dated the _____

19.

I hereby certify that I,

(I)

Central Board analyst duly appointed under

sub-section (3) of section 53 of the Water (Prevention and Control of Pollution) Act, 1974 (

6 of 1974

) received on the (II) _____ day of _____ 19__ from (III) _____ a sample of _____ for analysis. The sample was in a condition fit for analysis reported below;

I further certify that I have analysed the aforementioned sample on (IV) _____ and declare the result of the analysis reported below;

I further certify that I have analysed the aforementioned sample on (IV) _____ and declare the result of the analysis to be as follows :

(V)

The condition of the seals, fastening and container on receipt was as follows:-

signed this _____ day of _____ 19__.

(Signature)

Central Board analyst.

Address

To

(I)

Here write the full name of the Central Board-analyst.

(II)

Here write the date of receipt of the sample.

(III)

Here write the name of the Board or person or body of persons or officer from whom the sample was received.

(IV)

Here write the date of analysis

(V)

Here write the details of the analysis and refer to the method of analysis. If the space is not adequate the details may be given on a separate sheet of paper.

FORM XI

REPORT BY THE GOVERNMENT ANALYST

(See rule 27)

Report No _____

Dated the _____ 19__

I hereby certify that 1, (I)

_____ Government analyst duly appointed under sub-section (I) of section 53 of the Water (Prevention and Control of Pollution) Act, 1974 (6 of

1974.

) received on the (II) _____ day of _____ 19__
from (III) a sample of _____ for analysis. The sample was in a
condition for analysis reported below:

I further certify that I have
analysed the aforementioned sample, on (IV) _____ and declare the
result of the analysis to be as follows:-

(V)

The condition of the seals, fastening and container on receipt was as follows:-

signed this _____ day of _____ 19__

(Signature)

(Government
analyst)

Address

To

(I)

Here write the full name of
the Government analyst.

(II)

Here write the date of
receipt of the sample.

(III)

Here write the name of the Board or person or body of persons or officer from whom the sample was
received.

(IV)

Here write the date of
analysis.

(V)

Here write the details of the
analysis and refer to the method of analysis. If the space is not adequate and
details may be given on a separate sheet of paper.

FORM XII

CENTRAL POLLUTION CONTROL BOARD

Notice of intention to have sample analysed

(See Rule 31)

To

Take notice that it is intended
to have analysed the sample of water/sewage effluent/trade effluent which is
being taken today the _____ day of _____ 19__ from (1)

Name and
designation of the person
who takes
the sample

(I)
Here specify the stream, well, plant, vessel or place from where the sample is taken.
To

1.
[FORM XIII]
[Inserted by G.S.R. 717(E), dated 27.7.1989 (w.e.f. 27.7.1989).]
Application for consent for
establishing or taking any steps for establishment of Industry operation
process or any treatment disposal system for discharge, continuation of
discharge under section 25 or section 26 of the Water (Prevention and Control
of Pollution) Act, 1974.
(See Rule 32)
Date

From

To
The Member Secretary,
Central Pollution Control Board.
Sir,
I/We hereby apply for Consent/Renewal of Consent under section 25 of the Water (Prevention and Control of Pollution)
Act, 1974 (6 of 1974) for establishing or taking any
steps for establishment of Industry/operation process or ally
treatment/disposal system to bring into use any new/alterd outlet for
discharge of *sewage/trade effluent* to continue to discharge* sewage/trade
effluent* from land/premises owned by _____.

The other relevant details are
below:-

I. Full Name of the applicant

2. Nationality of the applicant

3.
(a)
Individual
(b)
Proprietary concern

- (c)
Partnership firm
(whether
registered or unregistered)
- (d)
Joint
family concern
- (e)
Private Limited Company
- (f)
Public Limited Company
- (g)
Government Company
- (1)
State Government
- (2)
Central Government
- (3)
Union Territory
- (h)
Foreign Company
(if a
foreign company, the details of registration, incorporation, etc.).

- (i)
Any
other Association or Body

4. Name, Address and Telephone Nos. of Applicant.

(the full list of individuals

partners persons Chairman (full-time or part-time Managing Directors, Managing Partners Directors (Full time or part-time) other kinds of office bearers are

to be furnished with their period of tenure in the respective office with
telephone Nos. and address).

5. Address of the Industry:

(Survey No. Khasra No. location

as per the revenue records Village Firka Tehsil District. Police Station or SHO
jurisdiction of the First-Class Magistrate).

6. Details of commissionings

etc.:-

- (a)
Approximate date of proposed
commissioning of work.

- (b)
Expected date of production:

7. Total number of employee

expected to employed.

8. Details of licence is any

obtained under the provisions of Industrial Development Regulations Act 1951.

9. Name of the person authorised

to sign this form (the original authorisation except in the case of individual
proprietary concern is to be enclosed).

10. (a) attach the list of raw

materials and chemicals used per month.

(b)

Licence Annual Capacity of
the Factory/Industry.

11. State daily quantity of water

in kilolitres utilised and its source (domestic/industrial process boiler Cooling others).

12. (a) State the daily maximum

quantity of effluents quantity and mode of disposal (sewer or drains or river). Also attach analysis report of the effluents.

Type of effluent quantity in

kilolitres Mode of disposal.

(i)

Domestic

(ii)

Industrial.

(b)

Quality of effluent currently

being the discharged or expected to be discharged.

(c)

What monitoring arrangement

is currently there or proposed.

13. State whether you have any

treatment plant for industrial? domestic or combined effluents.

Yes/No

If yes attach the description of

the process of treatment in brief. Attach information on the quality of treated
effluent vis-a-vis the standards.

14. State details of solid wastes

generated in the process or during waste treatment.

Description Quantity Method Method of disposal

15. I/We further declare that the

information furnished above is correct to the best of my/our knowledge.

16. I/We hereby submit that in

case of change either of the point of discharge or the quantity of discharge or

its quality a fresh application for CONSENT shall be made and until such CONSENT is granted no change shall be
made.

17. I/We hereby agree to submit

to the Central Board an application for renewal of consent one month in advance

of the date of expiry of the consented period for outlet/discharge if to be
continued thereafter.

18. I/We, undertake to furnish

any other information within one month or its being called by the Central Board.

19. I/We, enclose herewith cash

receipt No./bank draft No. _____ dated _____ for Rs.

_____ Rupee _____)

in favour of the Central Pollution Control Board, New Delhi, as fees payable
under section 25 of the Act.

Yours

faithfully,

signature

of the applicant

Note: * Strike out which is not

relevant.

FORM XIV

CENTRAL POLLUTION CONTROL BOARD

NOTICE OF INSPECTION

[See Rule 33(2)]

Chairman

Shri

Member-Secretary

Shri

No.

Dated

To

TAKE NOTICE that for the purpose of enquiry under sections 25/26 the following officers Or the Central Board namely:-

(i)

Shri

(ii)

Shri _____

(iii)

Shri

_____ and

the persons authorised by the Board to assist them shall inspect the

(a)

Water works

(b)

Sewage Works

(c)

Waste treatment Plant

(d)

Factory

(e)

Disposal system

(f)

Any other parts thereof or

pertaining thereto under management/control on date(s)

_____ between _____ hours when

all facilities requested by them for such inspection should be made available to them on the site. Take Notice that refusal or denial to above stated demand made under the functions of the Central Board shall amount to obstruction punishable under section 42 of the Act.

By order

of the Board.

Member-Secretary.

Copy to:

1.

2.

3.

[FORM XV]

[Inserted by G.S.R. 717(E), dated 27-7-1989(w.e.f. 27-7-1989.)]

(See rule 35)

FORM OF NOTICE

By registered post

acknowledgement due

(1)

From

.....

.....

.....

To

.....

.....

.....

Notice under section 49 of the Water (Prevention and Control of Pollution) Act, 1974. Whereas an offence under the Water (Prevention and Control of Pollution) Act, 1974, has been committed/is being committed by.....

(2)

I/We hereby give notice of 60 days under section 49 of the Water (Prevention and Control of Pollution) Act, 1974, of my/our intention to file a complaint in the Court against(2) for violation of section.....of the Water (Prevention and Control of Pollution) Act, 1974.

In support of my/our notice, I am/we are enclosing the following documents (3) as evidence of proof of violation of the Water (Prevention and Control of Pollution) Act, 1974.

Signature(s)

Place.....

Date.....

Explanation.-(1) In case the notice is given in the name of a company, documentary evidence authorising the person to sign the notice on behalf of the company shall be enclosed to this notice. Company for this purpose means a company defined in Explanation to section 47 of the Act.

(2)

Here give the name and address of the alleged offender. In case of a manufacturing/processing operating unit, indicate the name/location/nature of activity, etc.

(3)

Documentary evidence shall include photographs/technical reports/health/ reports of the area, etc., for enabling enquiry into the alleged violation/offence.

II

BUDGET AND ACCOUNT HEADS

[(See Rule 17(3))]

ADMINISTRATION

Heads of Accounts (Expenditure)

1. Salaries.

2. Wages.

3. Travel Expenses.
4. Office Expenses.
 - (a)
Furniture.
 - (b)
Postage
 - (c)
Office Machines/Equipment
 - (d)
Liveries
 - (e)
Hot
and cold weather charges
 - (f)
Telephones
 - (g)
Electricity and Water charges
 - (h)
Stationery
 - (i)
Printing
 - (j)
Staff
car and other vehicles
 - (k)
Other
items.
5. Fee and Honoraria.
6. Payment for professional and special services.
7. Rents, Rates and Taxes/Royalty.
8. Publications.
9. Advertising Sales and Publicity Expenses.
10. Grants in aid/Contributions/Subsidies.
11. Hospitality Expenses/Sumptuary Allowances etc.
12. Pensions/Gratitudes.
13. Write off/Losses.
14. Suspenses.
15. Expncses in connection with the settling up and maintenance or the Board Laboratory.
16. Other charges (A residuary head, this will also include rewards and prizes).

Heads of Account (Receipts)

1. Payments by Central Government.
2. Fees.
3. Fines and other receipts.

[SCHEDULE III]

[Substituted by G.S.R 107(E), dated 18.2.1992 (w.e.f. 18.2.1992).]

(See Rule 24)

CENTRAL POLLUTION CONTROL BOARD

ANNUAL REPORT FOR THE FINANCIAL YEAR

APRIL 19... TO MARCH 31, 19...

CHAPTER-I : Introduction

CHAPTER-2 : Constitution of the Board including changes therein.

CHAPTER-3 : Meetings of the Board

with major decisions taken therein.

CHAPTER-4 : Committees

constituted by the Board and their activities.

CHAPTER-5 : Monitoring Network

for air, water and soil quality.

CHAPTER-6 : Present state of

environment environmental problems and counter measures.

CHAPTER-7 : Environmental Research.

CHAPTER-8 : Environmental Training.

CHAPTER-9 : Environmental Awareness and Public Participation.

CHAPTER-10 : Environmental Standards including time schedule for their enforcement.

CHAPTER-11.1 : Prosecutions

launched and convictions secured for environmental pollution control.

CHAPTER-11.2 : Directions given

for closure of polluting industrial units.

CHAPTER-12 : Finance and accounts

of the Board.

CHAPTER-13 : Annual Plan of the

following year.

CHAPTER-14 : Any other important

matter dealt with by the Central Board.

ANNEXURES

1. Members of the Board.

2. Organisation Chart.

3. Staff Strength including

recruitment.

4. Publications.

5. Training Courses/Seminars/Workshops organised or attended.

6. Consents to establish
industries, operations & processes-issued/refused.

7. Consents to operate industries
operations & process-issued/refused.

[No.

2.

-20013/4/91-C.P.W.]

MUKUN

SANWAL, Jt. Seey.

[SCHEDULE IV]

[Inserted by G.S.R. 377(E), dated 20.7.1978 (w.e.f. 20.7.1978).]

(See rule 28)

Rates of fees payable in respect of a report of the Central Water Laboratory

S .No.

Nature of analysis

Rates of fees

1

2

3

I

Chemical Analysis of Water

(a)

Rs. 56/- (for all the tests)

Dissolved solids (at 103°-105°C)

P-alkalinity, as CaCO₃

M-alkalinity, as CaCO₃

Total hardness, as CaCO₃

Alkaline hardness, as CaCO₃

Non-alkaline hardness, as CaCO₃

Calcium, as Ca

Magnesium, as Mg

Chlorides, as Cl

Sulphates, as SO₃

Turbidity Units

PH

Appearance and colour in units

(visual)

(b)

Rs. 100/- (for all the tests)

Dissolved solids (at 103°-105°C)

P-alkalinity, as CaCO₃

M-alkalinity, as CaCO₃

Total hardness, as CaCO₃

Alkaline hardness, as CaCO₃

Non-alkaline hardness, as CaCO₃

Calcium, as Ca

Magnesium, as Mg

Sodium as Na

Potassium, as K

Iron as Fe

Manganese, as Mn

Chlorides, as Cl

Sulphates, as SO₄

Fluorides as F

Nitrates, as N

Phosphates, as PO₄

Turbidity, units

Turbidity, units

PH

Appearance and colour units

(visual)

(c)

Rs. 174/- (for all the tests)

Dissolved solids

P-alkalinity, as CaCO₃

M-alkalinity, as CaCO₃

Free CO₂ as CaCO₃

Total hardness, as CaCO₃

Alkaline hardness, as CaCO₃

Non-alkaline hardness, as CaCO₃

Calcium, as Ca

Magnesium, as Mg
Sodium as Na
Potassium, as K
Iron as Fe
Manganese, as Mn
Chlorides, as Cl
Sulphates, as SO₄
Fluorides as F
Nitrates, as N
Phosphates, as PO₄
Silica as SiO₂
Turbidity, units
PH
Langelier Index
Conductivity micromhos/cm
Appearance and colour (visual)
Probable composition of residue

CaCO₃
MgCO₃
Na₂CO₃
K₂CO₃
CaSO₄
MgSO₄
Na₂SO₄
K₂SO₄
CaCl
MgCl₂
NaCl
KCl
SiO₂
Fe₂O₃
Mn₂O₂
Al₂O₃
II

Chemical Analysis of Irrigation Waters

Rs. 72/- (for all the tests)

Dissolved solids

PH

Boron, as B

Calcium, as Ca

Chloride, as Cl

Conductivity, micromohs/cm

Magnesium, as Mg

Potassium, as K

Sodium, as Na

Sulphates as SO₄

Oil and Grease

III

Bacteriological Analysis of Potable Waters Rs. 50/- (for all the tests).

Rs. 50/- (for all the tests)

Standard Plate Count

Coliform

EE Coli.

Fecal streptococci

IV

Distilled Water (as IS: 1070-1960)

Rs. 120/- (for each tests)

V

Sewage and Trade effluent

Rs. 60/- (for all the tests)

BOD 20°C 5 day pH

COD suspended solids

(103°-15°C)

Colour (visual) units.

VI

Tests of water, sewage or trade effluent

Rs. 6/- (for each tests)

(a) Albuminoid nitrogen, as N

Ammoniacal nitrogen, as N

Carbon dioxide. as CO₂

Conductivity, micromhos/cm

Chlorides, as Cl

Chlorine demand

Dissolved Oxygen

Fluolide, as F

Langelier Index

Nitrate, N

Nitrate, as N

Permanganate value

Residual chlorine

Sodium, as Na

Sulphate (as SO₄)

Dissolved solids (at 103°-105°C)

Total solids

Turbidity, as units

Volatile solids

PH

(b)

Rs. 12/- (for each tests)

Coliform MPN presumptive for waste effluents only.

Acids solubility test for sand and gravel

Available chlorine in bleaching powder

Boron, as B

Calcium (titrimetric), as Ca

Iron, as Fe

Kjeldahl nitrogen, as N

Loss on ignition

Magnesium (Titrimetric), as Mg

Manganese, as Mn

Silica, as SiO₂

Potassium in sludge and waste water, as K

Sodium in sludge and waste waters, as Na

Soluble phosphate, as PO₄

Sulphides, as S

Suspended solids

Total phosphorous

Volatile acids

Alkalinity (P&M)

Specific gravity

(c) heavy Metals (qualitative test)

Rs. 24/- (for each tests)

Aluminium (gravimetric)

Arsenic

Barium

Calcium

COD

Chromium

Copper

Cynide

Insecticides

Lead

Magnesium (gravimetric)

Mercury

Nickel

Selenium

Silver

Sulphate (gravimetric)

Zinc

Percent Sodium

Oil and Grease

Phenolic Substances.

(d)

Rs. 36/- (for each tests)

BOD

Air Samples - analysis for:-

(i) Carbon dioxide

(ii) Carbon monoxide

(iii) Methane and

(iv) Oxygen

Total fluorides by distillation

(e)

Rs. 40/- (for each tests)

Sieve analysis

Conventional Marble Test

The Enslow Stability Indicator Test.

(f)

Rs. 60/- (for each tests)

Alum dose determination by jar test in water treatment

Alumino non-ferric (as per IS: 260-1960)

Bioassay tests without chemical analysis (Tim value)

Plain settlement test of solution containing fines

Filter sand and gravel

Including sieve analysis, solubility in dilute HCL, FOSS on ignition, and specific gravity.

(g)

Rs. 96/- (for each tests)

Alum

Jar test to evaluate optimum coagulant and coagulant aid doses in water treatment

Alumino ferric (as per IS: 299-1962)

Lime

Detailed analysis

(h)

Rs. 180/- (for each tests)

Lead extraction test on UPVC pipe as per IS: 4985-1963

(i)

Rs. 240/- (for each tests)

Scale deposits (detailed analysis)

(j)

Rs. 40/- (for each tests)

Attrition Test

(k)

Rs. 60/- (for each tests)

To find out correlation between Jackson Candle Turbidity and Gravimetric Units.

Related AI tags, queries and research notes

Translation